Harris County District Court

Cause No. 2025-CV-0033

Carl Lucas, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-30-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

Subject to and without waiving the foregoing general denial, Defendant asesrts the following affirmative defenses.

First, Plaintiff's injuries and damages, if any, were proximately caused by the negligence of Plaintiff, including failure to keep a proper lookout, failure to yield the right-of-way at the intersection, and failure to timely apply brakes. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff.

Second, the negligence of persons or entities other than Defendant, including an unidentified third-party driver whose vehicle entered the intersection in violation of a traffic control device, was the sole proximate cause or a proximate cause of the collision. Defendant requests a submission of responsibility for all such persons under Chapter 33.

Third, Plaintiff failed to mitigate damages by unreasonably delaying or forgoing medical treatment recommended by a physician, and any damages that could have been avoided through reasonable care are not recoverable.